

# HOUSE . . . . . No. 4949

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## The Commonwealth of Massachusetts

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HOUSE OF REPRESENTATIVES, January 23, 2026.

The committee on Financial Services, to whom was referred the petition (accompanied by bill, House, No. 1238) of John J. Lawn, Jr., for legislation to establish a division of health insurance, reports recommending that the accompanying bill (House, No. 4949) ought to pass.

For the committee,

JAMES M. MURPHY.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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An Act establishing a division of health insurance.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 16D of chapter 6A of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by striking out, in lines 4 and 5, the words “commissioner of  
3   insurance” and inserting in place thereof the following words:- commissioner of health  
4   insurance.

5           SECTION 2. Section 16D of said chapter 6A, most recently amended by section 2 of  
6   chapter 343 of the acts of 2024, is hereby further amended by inserting after the words “health  
7   policy commission established by section 16 of chapter 6D” the following words:- , and the  
8   managed care bureau in the division of health insurance”

9           SECTION 3. Section 16G of said chapter 6A, most recently amended by section 16 of  
10   chapter 7 of the acts of 2023, is hereby further amended by striking out subsection (b) and  
11   inserting in place thereof the following subsection:-

(b) The following divisions and agencies shall be within the department of consumer affairs and business regulation: the division of banks, the division of insurance, the division of health insurance, the division of standards, the division of occupational licensure and the

SECTION 4. Section 16Q of said chapter 6A of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in line 13, the word “insurance” and inserting in place thereof the following words:- health insurance.

SECTION 5. Section 16Z of said chapter 6A, as appearing in the 2022 Official Edition, is hereby amended by striking out, in line 7, the word “insurance” and inserting in place thereof the following words:- health insurance.

SECTION 6. Section 1 of said chapter 6D, as so appearing, is hereby amended by striking out, in lines 168 and 169, the word “insurance” and inserting in place thereof the following words:- health insurance.

SECTION 7. Subsection (b) and (c) of section 2 of said chapter 6D, most recently amended by section 12 of chapter 343 of the Acts of 2024, is hereby further amended by striking out each time they appear, the words “commissioner of insurance” and inserting in place thereof, in each instance, the following words:- commissioner of health insurance.

SECTION 8. Subsection (d) of section 8 of said chapter 6D, most recently amended by section 18 of chapter 343 of the Acts of 2024, is hereby further amended by striking out the words “(xii) a representative from the division of insurance” and inserting in place thereof the following words:- (xii) a representative from the division of health insurance.

SECTION 9. Section 11 of said chapter 6D of the General Laws, most recently amended by section 18 of chapter 343 of the Acts of 2024, is hereby amended by striking out striking each time they appear, words “division of insurance” and inserting in place thereof, in each instance, the following words:- division of health insurance.

SECTION 10. Section 15 of said chapter 6D, as appearing the 2022 Official Edition, is hereby amended by striking out, in line 38, the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 11. Section 16 of said chapter 6D, as so appearing, is hereby amended by striking out, in lines 9, 12 and 67, each time they appear, the words “division of insurance” and inserting in place thereof, in each instance, the following words:- division of health insurance.

SECTION 12. Said section 16 of said chapter 6D, as so appearing, is hereby further amended by striking out, in lines 43 and 44, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 13. Paragraph (b) of subsection (b) of section 22 of said chapter 6D, inserted by section 25 of chapter 342 of the Acts of 2024, is hereby amended by the striking out the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 14. Section 23 of said chapter 6D, inserted by section 14 of chapter 342 of the Acts of 2024, is hereby amended by the striking out the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 15. Section 11F of chapter 12, as appearing in the 2022 Official Edition, is hereby amended by striking out, in lines 6 and 7, the words “division of insurance within the department of banking and insurance” and inserting in place thereof the following words:-  
division of insurance or the division of health insurance within the department of banking, insurance and health insurance.

SECTION 16. Said section 1 of chapter 12C, as so appearing, is hereby amended by striking out, in lines 189 and 190, the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 17. Subsection (a) of section 2A of said chapter 12C, most recently amended by section 37 of chapter 343 of the Acts of 2024, is hereby further amended by striking out the words “commissioner of insurance” and inserting in place thereof, in each instance, the following words:- commissioner of health insurance..

SECTION 18. Section 3 of said chapter 12C, most recently amended by section 37 of chapter 343 of the Acts of 2024, is hereby further amended by striking out the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 19. Section 9 of said chapter 12C, most recently amended by section 37 of chapter 343 of the Acts of 2024, is hereby further amended by striking out, each time they appear, the words “division of insurance” and inserting in place thereof, in each instance, the following words:- division of health insurance.

SECTION 20. Section 10 of said chapter 12C, as so appearing, is hereby amended by striking out, in lines 24 and 25, the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 21. Said section 10 of said chapter 12C, as so appearing, is hereby further amended by striking out, in lines 96 and 97, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 22. Paragraph (2) of subsection (c) of said chapter 12C, most recently amended by section 44 of chapter 343 of the Acts of 2024, is hereby further amended by striking out the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 23. Clause (ii) of the third sentence of section 17 of said chapter 12C, most recently amended by section 49 of chapter 343 of the Acts of 2024, is hereby amended further by striking out the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 24. Section 1 of chapter 24A of the General Laws is hereby further amended by striking out, in lines 18 and 19, as so appearing, the words “department of banking and insurance” and inserting in place thereof the following words:- department of banking, insurance and health insurance.

SECTION 25. Chapter 26 of the General Laws is hereby amended by striking out the title and inserting in place thereof the following title:- DEPARTMENT OF BANKING, INSURANCE AND HEALTH INSURANCE

SECTION 26. Chapter 26 of the General Laws is hereby further amended by striking out section 1, as appearing in the 2022 Official Edition, and inserting in place thereof the following section:-

95           Section 1. (a) There shall be a department of banking, insurance and health insurance  
96   consisting of a division of banks and loan agencies, a division of insurance and a division of  
97   health insurance.

98           (b)(1) The division of health insurance shall have authority to oversee the health  
99   insurance market in the commonwealth and regulate companies organized to transact business  
100   and offering policies of accident and sickness insurance under chapter 175; nonprofit hospital  
101   service corporations under chapter 176A; nonprofit medical service corporations under chapter  
102   176B; nonprofit medical service plans under chapter 176C; dental service corporations under  
103   chapter 176E; optometric service corporations under chapter 176F; health maintenance  
104   organizations under chapter 176G; preferred provider arrangements under chapter 176I; health  
105   benefit plans under chapter 176J; Medicare supplemental insurance or Medicare select insurance  
106   contracts authorized under chapter 176K; nongroup health plans under chapter 176M; risk-  
107   bearing provider organizations under chapter 176T; long-term care insurance policies under  
108   chapter 176U; and dental benefit insurance plans under chapter 176X.

109           (2) The division of insurance shall have authority for oversight over all other insurance  
110   markets not included in paragraph 1.

111           (c) Each division shall have a commissioner who shall be known, respectively, as the  
112   commissioner of banks, the commissioner of insurance and the commissioner of health  
113   insurance. The commissioners shall act as a board in all matters concerning the department as a  
114   whole.

SECTION 27. Said chapter 26 of the General Laws is hereby amended by striking out section 7A, as appearing in the 2022 Official Edition, and inserting in place thereof the following section:-

Section 7A. (a) As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:-

“Rate review”, any examination performed by the commissioner of the aggregate rates of payment pursuant to sections 5, 6 and 10 of chapter 176A; section 4 of chapter 176B; section 16 of chapter 176G; section 6 of chapter 176J; and section 7 of chapter 176K.

(b) There shall be within the division of health insurance a health insurance access bureau overseen by a deputy commissioner, whose duties shall include, but not be limited to, subject to the direction of the commissioner of insurance, rate review of premium rates for health benefit plans offered, issued or renewed in the commonwealth, administration of the division's statutory and regulatory authority for oversight of the small group and individual health insurance market, oversight of affordable health plans, including coverage for young adults, as well as the dissemination of appropriate information to consumers about health insurance coverage and access to affordable products. The deputy commissioner shall: (i) protect the interests of consumers of health insurance; (ii) encourage fair treatment of health care providers by health insurers; (iii) enhance equity, access, quality and affordability in the health care system; (iv) guard the solvency of health insurers; (v) work cooperatively with the health policy commission and the center for health information and analysis to monitor health care spending; and (vi) prioritize affordability of health insurance products during rate review.



(c) The deputy commissioner shall develop affordability standards to consider during rate review; provided, however, that the commissioner's review of a carrier's rates shall adhere to principles of solvency and actuarial soundness. Such standards shall consider the following:

(i) affordability for consumers, including the totality of costs paid by consumers of health insurance for covered benefits including, but not limited to, the enrollee's share of premium, out-of-pocket maximum amounts, deductibles, copays, coinsurance and other forms of cost sharing for health insurance coverage;

(ii) affordability for purchasers, including the totality of costs paid by purchasers of health insurance including, but not limited to, premium costs, actuarial value of coverage for covered benefits and the value delivered on health care spending in terms of improved quality and cost efficiency; and

(iii) the impact of proposed rates on the commonwealth's performance against the health care cost growth benchmark established in section 9 of chapter 6D.

(d) The deputy commissioner shall review data and documents submitted to the division including, but not limited to, any materials submitted as part of rate reviews, to examine the causes of premium rate increases and excessive provider price variation.

(e) The commissioner shall appoint, at a minimum, the following employees: a first deputy, a general counsel, a chief health economist, a chief actuary, a chief research analyst, and a chief examiner. The appointed employees shall devote their full time to the duties of their offices, shall be exempt from chapters 30 and 31 and shall serve at the pleasure of the commissioner. The commissioner may appoint and remove additional employees, including deputies, economists, analysts, examiners, assistant actuaries, inspectors, clerks and other

158 assistants as the work of the bureau may require. Such additional employees shall perform such  
159 duties as the commissioner may prescribe.

160 (f) The commissioner shall make and collect an assessment against the carriers licensed  
161 under chapters 175, 176A, 176B, 176E, 176F and 176G to pay for the expenses of the bureau.  
162 The assessment shall be at a rate sufficient to produce \$2,000,000 annually. In addition to that  
163 amount, the assessment shall include an amount to be credited to the General Fund which shall  
164 be equal to the total amount of funds estimated by the secretary of administration and finance to  
165 be expended from the General Fund for indirect and fringe benefit costs attributable to the  
166 personnel costs of the bureau. The assessment shall be allocated on a fair and reasonable basis  
167 among all carriers licensed under said chapters. The funds produced by the assessments shall be  
168 expended by the bureau, in addition to any other funds which may be appropriated, to assist in  
169 defraying the general operating expenses of the bureau, and may be used to compensate  
170 consultants retained by the division. A carrier licensed under said chapters shall pay the amount  
171 assessed against it within 30 days after the date of the notice of assessment from the  
172 commissioner.

173 SECTION 28. Section 7B of said chapter 26, as so appearing, is hereby amended by  
174 inserting after the word “commissioner”, in line 2, the following words:- of health insurance.

175 SECTION 29. Said section 7B of said chapter 26, as so appearing, is hereby further  
176 amended by striking out, in line 9, the word “bureau” and inserting in place thereof the following  
177 words:- division of health insurance.

178 SECTION 30. Section 8H of said chapter 26, as so appearing, is hereby amended by  
179 striking out the first and second paragraphs.

180           SECTION 31. Said section 8H of said chapter 26, as so appearing, is hereby further  
181 amended by striking out, in lines 48, 55 and 73 and 74, the words “division of insurance” and  
182 inserting in place thereof, in each instance, the following words:- division of health insurance.

183           SECTION 32. Said section 8H of said chapter 26, as so appearing, is hereby further  
184 amended by striking out, in line 90, the words “commissioner of insurance” and inserting in  
185 place thereof the following words:- commissioner of health insurance.

186           SECTION 33. Section 8K of said chapter 26, as so appearing, is hereby amended by  
187 striking out, in line 1, the words “commissioner of insurance” and inserting in place thereof the  
188 following words:- commissioner of health insurance.

189           SECTION 34. Said section 8K of said chapter 26, as so appearing, is hereby further  
190 amended by striking out, in line 28, the words “division of insurance” and inserting in place  
191 thereof the following words:- division of health insurance.

192           SECTION 35. Section 8M of said chapter 26, as so appearing, is hereby amended by  
193 striking out, in lines 6 and 74 and 75, the words “commissioner of insurance” and inserting in  
194 place thereof, in each instance, the following words:- commissioner of health insurance.

195           SECTION 36. Said section 8M of said chapter 26, as so appearing, is hereby further  
196 amended by striking out, in lines 128 and 129, the words “division of insurance” and inserting in  
197 place thereof the following words:- division of health insurance.

198           SECTION 37. Section 3 of chapter 32A of the General Laws, as so appearing, is hereby  
199 amended by striking out, in line 5, the words “commissioner of insurance” and inserting in place  
200 thereof the following words:- commissioner of health insurance.

201           SECTION 38. Section 17Q of said chapter 32A, most recently amended by section 1 of  
202 chapter 285 of the Acts of 2024, is hereby amended by striking out, each time they appear, the  
203 words “division of insurance” and inserting in place thereof, in each instance, the following  
204 words:- division of health insurance.

205           SECTION 39. Section 22B of said chapter 32A, as so appearing, is hereby amended by  
206 striking out, in lines 7 and 101 and 102, the words “commissioner of insurance” and inserting in  
207 place thereof, in each instance, the following words:- commissioner of health insurance.

208           SECTION 40. Section 25 of said chapter 32A, as so appearing, is hereby amended by  
209 striking out, in lines 78 and 79 and 94, the words “commissioner of insurance” and inserting in  
210 place thereof, in each instance, the following words:- commissioner of health insurance.

211           SECTION 41. Subsection (c) of section 8B of chapter 62C of the General Laws, as so  
212 appearing, is hereby amended by striking out the third and fourth sentences and inserting in place  
213 thereof the following 2 sentences:- The commissioner of revenue, in consultation with the  
214 commissioner of health insurance, may specify the content and format of the statements and  
215 reports. The commissioner of revenue may disclose the information in the statements and reports  
216 to the division of health insurance, the center for health information and analysis and the  
217 commonwealth health insurance connector.

218           SECTION 42. Said section 8B of said chapter 62C, as so appearing, is hereby further  
219 amended by striking out, in lines 35 and 36, the words “commissioner of insurance” and  
220 inserting in place thereof the following words:- commissioner of health insurance.

SECTION 43. Section 21 of said chapter 62C is hereby amended by inserting after the word “insurance”, in line 146, as so appearing, the following words:- , the division of health insurance.

SECTION 44. Section 12 of chapter 62E of the General Laws, as so appearing, is hereby amended by inserting after the word “insurance”, in lines 19 and 20, the following words:- , the division of health insurance.

SECTION 45. Section 26 of chapter 63 of the General Laws, as so appearing, is hereby amended by striking out, in lines 3 and 4, the words “and the commissioner of insurance” and inserting in place thereof the following words:- , the commissioner of insurance and the commissioner of health insurance.

SECTION 46. Chapter 110C of the General Laws is hereby amended by striking out section 11, as so appearing, and inserting in place thereof the following section:-

Section 11. If the offeror or a target company is an insurance company subject to regulation under chapter 175 to chapter 175C, inclusive, the commissioner of insurance appointed pursuant to section 6 of chapter 26 or their designee, or the commissioner of health insurance appointed pursuant to section 7A of chapter 26, or their designee, as appropriate, shall for all purposes of this section be substituted for the secretary. This section shall not be construed to limit or modify in any way any responsibility, authority, power or jurisdiction of the secretary, the commissioner of insurance or the commissioner of health insurance pursuant to any other provisions of law.

241           SECTION 47. Section 24N of chapter 111 of the General Laws, as so appearing, is  
242 hereby amended by striking out, in line 71, the words “commissioner of insurance” and inserting  
243 in place thereof the following words:- commissioner of health insurance.

244           SECTION 48. Section 206A of said chapter 111, as appearing in the 2022 Official  
245 Editions, is hereby amended by striking out, in lines 1 and 2, the words “division of insurance”  
246 and inserting in place thereof the following words:- division of health insurance.

247           SECTION 49. Section 218 of said chapter 111, as so appearing, is hereby amended by  
248 striking out, in line 2, the words “commissioner of insurance” and inserting in place thereof the  
249 following words:- commissioner of health insurance.

250           SECTION 50. Section 2 of chapter 111K of the General Laws, as so appearing, is hereby  
251 amended by striking out, in lines 4 and 5, the words “commissioner of insurance” and inserting  
252 in place thereof the following words:- commissioner of health insurance.

253           SECTION 51. Section 1 of chapter 111M of the General Laws, as so appearing, is hereby  
254 amended by striking out, in lines 34 and 35, the words “commissioner of insurance” and  
255 inserting in place thereof the following words:- commissioner of health insurance.

256           SECTION 52. Section 9C of chapter 118E of the General Laws, as appearing in the 2022  
257 Official Edition, is hereby amended by striking out, in lines 43 and 44 and lines 147 and 148, the  
258 words “commissioner of insurance” and inserting in place thereof, in each instance, the  
259 following words:- commissioner of health insurance.

260           SECTION 53. Section 9D of said chapter 118E, as so appearing, is hereby amended by  
261 striking out, in line 183, the words “division of insurance” and inserting in place thereof the  
262 following words:- division of health insurance.

263           SECTION 54. Section 13D of said chapter 118E, as so appearing, is hereby amended by  
264 striking out, in line 17, each time they appear, the words “division of insurance” and inserting in  
265 place thereof, in each instance, the following words:- division of health insurance.

266           SECTION 55. Section 69 of said chapter 118E, as so appearing, is hereby amended by  
267 striking out, in line 58, the words “division of insurance” and inserting in place thereof the  
268 following words:- division of health insurance.

269           SECTION 56. Section 189 of chapter 149 of the General Laws, as so appearing, is hereby  
270 amended by striking out, in lines 68 and 69, the words “and (iv) the commissioner of insurance  
271 or a designee” and inserting in place thereof the following words:- (iv) the commissioner of  
272 insurance or a designee; and (v) the commissioner of health insurance or a designee.

273           SECTION 57. Section 1 of chapter 175 of the General Laws, as so appearing, is hereby  
274 amended by striking out the definition of “Commissioner” and inserting in place thereof the  
275 following definition:-

276           “Commissioner”, (i) the commissioner of insurance appointed pursuant to section 6 of  
277 chapter 26, or their designee, or, as appropriate, (ii) the commissioner of health insurance  
278 appointed pursuant to section 7A of said chapter 26, or their designee, to the extent that this  
279 chapter applies to companies that are regulated by the division of health insurance pursuant to  
280 section 1 of said chapter 26.

281           SECTION 58. Said section 1 of said chapter 175, as so appearing, is hereby further  
282 amended by inserting after the definition of “Contract on a Variable Basis” the following  
283 definition:-

284           “Division”, the division of insurance or the division of health insurance, as appropriate.

285           SECTION 59. Section 4 of said chapter 175, as so appearing, is hereby amended by  
286 striking out, in line 9, the words “of insurance”.

287           SECTION 60. Section 24D of said chapter 175, as so appearing, is hereby amended, in  
288 lines 19, 32 and 33, 59 and 99, by inserting after the words “commissioner of insurance”, the  
289 following words, in each instance:- and the commissioner of health insurance.

290           SECTION 61. Section 24E of said chapter 175, as so appearing, is hereby amended by  
291 inserting after the word “insurance”, in line 70, the following words:- and the commissioner of  
292 health insurance.

293           SECTION 62. Said section 24E of said chapter 175, as so appearing, is hereby further  
294 amended by inserting after the word “insurance”, in line 102, the following words:- or the  
295 commissioner of health insurance.

296           SECTION 63. Section 24F of said chapter 175, as so appearing, is hereby amended, in  
297 lines 17, 29 and 30, 65 and 83, by inserting after the words “commissioner of insurance”, the  
298 following words, in each instance:- and the commissioner of health insurance.

299           SECTION 64. Said section 24F of said chapter 175, as so appearing, is hereby further  
300 amended by inserting after the word “insurance”, in line 100, the following words:- or the  
301 commissioner of health insurance.



302           SECTION 65. Section 47B of said chapter 175, as so appearing, is hereby amended by  
303 striking out, in line 142, the words “division of insurance” and inserting in place thereof the  
304 following words:- division of health insurance.

305           SECTION 66. Section 47J of said chapter 175, as so appearing, is hereby amended by  
306 striking out, in line 1, the words “commissioner of insurance” and inserting in place thereof the  
307 following words:- commissioner of health insurance.

308           SECTION 67. Section 47W of said chapter 175, as so appearing, is hereby amended by  
309 striking out, in line 117, the words “commissioner of insurance” and inserting in place thereof  
310 the following words:- commissioner of health insurance.

311           SECTION 68. Section 47AA of said chapter 175, as so appearing, is hereby amended by  
312 striking out, in lines 83 and 84 and line 99, the words “commissioner of insurance” and inserting  
313 in place thereof, in each instance, the following words:- commissioner of health insurance.

314           SECTION 69. Section 47KK of said chapter 175, most recently amended by section 20 of  
315 chapter 285 of the acts of 2024, is hereby amended by striking out, each time they appear, the  
316 words “division of insurance” and inserting in place thereof, in each instance, the following  
317 words:- division of health insurance.

318           SECTION 70. Section 47TT of said chapter 175, as so appearing, is hereby amended by  
319 striking out, in line 51, the words “division of insurance” and inserting in place thereof the  
320 following words:- division of health insurance.

321           SECTION 71. Section 108 of said chapter 175, as so appearing, is hereby amended by  
322 striking out, in lines 681 and 682, the words “commissioner of insurance” and inserting in place  
323 thereof the following words:- commissioner of health insurance.

324           SECTION 72. Section 108I of said chapter 175, as so appearing, is hereby amended by  
325 striking out, in line 58, the words “of insurance”.

326           SECTION 73. Section 108M of said chapter 175, as so appearing, is hereby amended by  
327 striking out, in line 10, the words “of insurance”.

328           SECTION 74. Section 110I of said chapter 175, as so appearing, is hereby amended by  
329 striking out, in line 23, the words “of insurance”.

330           SECTION 75. Section 110J of said chapter 175, as so appearing, is hereby amended by  
331 striking out, in line 22, the words “of insurance”.

332           SECTION 76. Section 206 of said chapter 175, as so appearing, is hereby amended by  
333 striking out the definition of “Commissioner” and inserting in place thereof the following  
334 definition:-

335           “Commissioner”, (i) the commissioner of insurance appointed pursuant to section 6 of  
336 chapter 26, or their designee, or, as appropriate, (ii) the commissioner of health insurance  
337 appointed pursuant to section 7A of said chapter 26, or their designee, to the extent that this  
338 chapter applies to companies that are regulated by the division of health insurance pursuant to  
339 section 1 of said chapter 26.

SECTION 77. Said section 206 of said chapter 175, as so appearing, is hereby further amended by striking out the definition of “Division” and inserting in place thereof the following definition:-

“Division”, the division of insurance or the division of health insurance, as appropriate.

SECTION 78. Section 206C of said chapter 175, as so appearing, is hereby amended by striking out, in lines 647 and 648, the words “division of insurance’s” and inserting in place thereof the following words:- division’s.

SECTION 79. Chapter 175B of the General Laws is hereby amended by inserting after section 1 the following section:-

Section 1A. For the purposes of this chapter, the term “commissioner” shall mean: (i) the commissioner of insurance appointed pursuant to section 6 of chapter 26, or their designee, or, as appropriate, (ii) the commissioner of health insurance appointed pursuant to section 7A of said chapter 26, or their designee, to the extent that this chapter applies to companies that are regulated by the division of health insurance pursuant to section 1 of said chapter 26.

SECTION 80. Section 2 of said chapter 175B, as appearing in the 2022 Official Edition, is hereby amended by striking out, in lines 9, 18, and 20 and 21, each time they appear, the words “of insurance”.

SECTION 81. Section 3A of said chapter 175B, as so appearing, is hereby amended by striking out, in line 7, the words “of insurance”.

SECTION 82. Section 1 of chapter 175D of the General Laws, as so appearing, is hereby amended by striking out paragraph (1) and inserting in place thereof the following paragraph:-

(1) “Commissioner”, (i) the commissioner of insurance appointed pursuant to section 6 of chapter 26, or their designee, or, as appropriate, (ii) the commissioner of health insurance appointed pursuant to section 7A of said chapter 26, or their designee, to the extent that this chapter applies to companies that are regulated by the division of health insurance pursuant to section 1 of said chapter 26.

SECTION 83. Section 2 of chapter 175I of the General Laws, as so appearing, is hereby amended by striking out the definition of “Commissioner” and inserting in place thereof the following definition:-

“Commissioner”, (i) the commissioner of insurance appointed pursuant to section 6 of chapter 26, or their designee, or, as appropriate, (ii) the commissioner of health insurance appointed pursuant to section 7A of said chapter 26, or their designee, to the extent that this chapter applies to companies that are regulated by the division of health insurance pursuant to section 1 of said chapter 26.

SECTION 84. Section 9 of said chapter 175I, as so appearing, is hereby amended by striking out, in lines 21 and 22, the words “of insurance”.

SECTION 85. Section 2 of chapter 176A of the General Laws, as so appearing, is hereby amended by striking out, in lines 11 and 12, and lines 13 and 14, the words “commissioner of insurance” and inserting in place thereof, in each instance, the following words:- commissioner of health insurance.

SECTION 86. Section 3 of said chapter 176A, as so appearing, is hereby amended by striking out, in lines 3 and 4, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 87. Section 5 of said chapter 176A, as so appearing, is hereby amended by inserting after the word “corporation.”, in line 44, the following sentence:- For the purposes of the review of rates of payment under this section, “not excessive” shall include considerations of affordability for consumers and purchasers of health insurance products.

SECTION 88. Said section 5 of said chapter 176A, as so appearing, is hereby further amended by striking out, in lines 205 and 206, the words “commissioner of insurance shall on December thirty-first, nineteen hundred and seventy and annually thereafter require” and inserting in place thereof the following words:- commissioner of health insurance shall require annually, on December 31,.

SECTION 89. The second paragraph of section 6 of said chapter 176A, as so appearing, is hereby amended by adding the following sentence:- For the purposes of the review of rates of payment under this section, whether a contract is not excessive shall include considerations of affordability for consumers and purchasers of health insurance products.

SECTION 90. Section 7 of said chapter 176A, as so appearing, is hereby amended by striking out, in lines 1 and 11, the words “commissioner of insurance” and inserting in place thereof, in each instance, the following words:- commissioner of health insurance.

SECTION 91. Section 8 of said chapter 176A, as so appearing, is hereby amended by striking out, in line 27, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 92. Section 8A of said chapter 176A, as so appearing, is hereby amended by striking out, in line 142, the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 93. Section 8F of said chapter 176A, as so appearing, is hereby amended by striking out, in line 19, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 94. Section 8M of said chapter 176A, as so appearing, is hereby amended by striking out, in line 1, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 95. Section 8W of said chapter 176A, as so appearing, is hereby amended by striking out, in line 114, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 96. Section 8DD of said chapter 176A, as so appearing, is hereby amended by striking out, in lines 81 and 82 and line 97, the words “commissioner of insurance” and inserting in place thereof, in each instance, the following words:- commissioner of health insurance.

SECTION 97. Section 8MM of said chapter 176A, most recently amended by section 24 of chapter 285 of the acts of 2024, is hereby amended by striking out, each time they appear, the words “division of insurance” and inserting in place thereof, in each instance, the following words:- division of health insurance.

SECTION 98. Section 8UU of said chapter 176A, as so appearing, is hereby amended by striking out, in line 41, the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 99. Section 10 of said chapter 176A, most recently amended by section 75 of chapter 343 of the acts of 2024, is hereby amended by striking out the words “commissioner of

426 insurance” and inserting in place thereof the following words:- commissioner of health  
427 insurance.

428 SECTION 100. Section 11 of said chapter 176A, as so appearing, is hereby amended by  
429 striking out, in line 13, the words “commissioner of insurance” and inserting in place thereof the  
430 following words:- commissioner of health insurance.

431 SECTION 101. Section 15 of said chapter 176A, as so appearing, is hereby amended by  
432 striking out, in line 3, the words “commissioner of insurance” and inserting in place thereof the  
433 following words:- commissioner of health insurance.

434 SECTION 102. Section 16 of said chapter 176A, as so appearing, is hereby amended by  
435 striking out, in line 1, the words “commissioner of insurance” and inserting in place thereof the  
436 words:- commissioner of health insurance.

437 SECTION 103. Section 17 of said chapter 176A, as so appearing, is hereby amended, in  
438 lines 9 and 11, by inserting after the words “commissioner of insurance”, each time they appear,  
439 the following words, in each instance:- and the commissioner of health insurance.

440 SECTION 104. Section 18 of said chapter 176A, as so appearing, is hereby amended by  
441 striking out, in line 3, the words “commissioner of insurance” and inserting in place thereof the  
442 following words:- commissioner of health insurance.

443 SECTION 105. Section 20 of said chapter 176A, as so appearing, is hereby amended by  
444 striking out, in line 3, the words “commissioner of insurance” and inserting in place thereof the  
445 following words:- commissioner of health insurance.

SECTION 106. Section 21 of said chapter 176A, as so appearing, is hereby amended by striking out, in line 1, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 107. Section 22 of said chapter 176A, as so appearing, is hereby amended by striking out, in line 3, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 108. Section 23 of said chapter 176A, as so appearing, is hereby amended by striking out, in line 1, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 109. Section 24 of said chapter 176A, as so appearing, is hereby amended by striking out, in line 19, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 110. Section 25 of said chapter 176A, as so appearing, is hereby amended by striking out, in line 4, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 111. Section 31 of said chapter 176A, as so appearing, is hereby amended by striking out, in line 5, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 112. Section 37 of said chapter 176A, as so appearing, is hereby amended by striking out, in line 10, the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.



SECTION 113. Section 1 of chapter 176B of the General Laws, as so appearing, is hereby amended by striking out the definition of “Commissioner” and inserting in place thereof the following definition:-

“Commissioner”, the commissioner of health insurance appointed pursuant to section 7A of chapter 26, or their designee.

SECTION 114. Said section 1 of said chapter 176B, as so appearing, is hereby further amended by inserting after the definition of “Dependent” the following definition:-

“Division”, the division of health insurance.

SECTION 115. Section 4 of said chapter 176B, most recently amended by section 76 of chapter 343 of the acts of 2024, is hereby amended by striking out the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 116. Section 4A of said chapter 176B, as so appearing, is hereby amended by striking out, in line 137, the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 117. Section 4M of said chapter 176B, as so appearing, is hereby amended by striking out, in line 1, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

SECTION 118. Section 4DD of said chapter 176B, as so appearing, is hereby amended by striking out, in lines 80 and 81 and line 96, the words “commissioner of insurance” and

487 inserting in place thereof, in each instance, the following words:- commissioner of health  
488 insurance.

489 SECTION 119. Section 4MM of said chapter 176B, most recently amended by section 26  
490 of chapter 285 of the acts of 2024, is hereby amended by striking out, each time they appear, the  
491 words “division of insurance” and inserting in place thereof, in each instance, the following  
492 words:- division of health insurance.

493 SECTION 120. Section 4UU of said chapter 176B, as so appearing, is hereby amended  
494 by striking out, in line 40, the words “division of insurance” and inserting in place thereof the  
495 following words:- division of health insurance.

496 SECTION 121. Section 6 of said chapter 176B, as so appearing, is hereby amended by  
497 striking out, in line 16, the words “commissioner of insurance” and inserting in place thereof the  
498 following words:- commissioner of health insurance.

499 SECTION 122. Section 6B of said chapter 176B, as so appearing, is hereby amended by  
500 striking out, in lines 18 and 19, the words “commissioner of insurance” and inserting in place  
501 thereof the following words:- commissioner of health insurance.

502 SECTION 123. Section 10 of said chapter 176B, as so appearing, is hereby amended by  
503 striking out, in line 34, the words “commissioner of insurance” and inserting in place thereof the  
504 following words:- commissioner of health insurance.

505 SECTION 124. Section 12 of said chapter 176B, as so appearing, is hereby amended by  
506 striking out, in lines 8 and 9, the words “division of insurance” and inserting in place thereof the  
507 following words:- division of health insurance.

508           SECTION 125. Section 24 of said chapter 176B, as so appearing, is hereby amended by  
509 striking out, in line 10, the words “division of insurance” and inserting in place thereof the  
510 following words:- division of health insurance.

511           SECTION 126. Section 9 of chapter 176C of the General Laws, as so appearing, is  
512 hereby amended by striking out, in lines 2 and 3 and lines 6 and 7, the words “commissioner of  
513 insurance” and inserting in place thereof, in each instance, the following words:- commissioner  
514 of health insurance.

515           SECTION 127. Section 10 of said chapter 176C, as so appearing, is hereby amended by  
516 striking out, in lines 1, 9 and 13, the words “commissioner of insurance” and inserting in place  
517 thereof, in each instance, the following words:- commissioner of health insurance.

518           SECTION 128. Section 17 of said chapter 176C, as so appearing, is hereby amended by  
519 striking out, in line 6, the words “commissioner of insurance” and inserting in place thereof the  
520 following words:- commissioner of health insurance.

521           SECTION 129. Section 1 of chapter 176D of the General Laws, as so appearing, is  
522 hereby amended by striking out paragraph (b) and inserting in place thereof the following  
523 paragraph:-

524           (b) “Commissioner”, the commissioner of health insurance appointed pursuant to section  
525 7A of chapter 26, or their designee.

526           SECTION 130. Section 3B of said chapter 176D, as so appearing, is hereby amended by  
527 striking out, in line 120, the words “commissioner of the division of insurance” and inserting in  
528 place thereof the following words:- commissioner of health insurance.

529           SECTION 131. Section 1 of chapter 176E of the General Laws, as so appearing, is  
530 hereby amended by striking out the definition of “Commissioner” and inserting in place thereof  
531 the following definition:-

532           “Commissioner”, the commissioner of health insurance appointed pursuant to section 7A  
533 of chapter 26, or their designee.

534           SECTION 132. Section 6 of said chapter 176E, as so appearing, is hereby amended by  
535 striking out, in line 22, the words “commissioner of insurance” and inserting in place thereof the  
536 following words:- commissioner of health insurance.

537           SECTION 133. Section 12 of said chapter 176E, as so appearing, is hereby amended by  
538 striking out, in lines 6 and 7, the words “division of insurance” and inserting in place thereof the  
539 following words:- division of health insurance.

540           SECTION 134. Section 1 of chapter 176F of the General Laws, as so appearing, is hereby  
541 amended by striking out the definition of “Commissioner” and inserting in place thereof the  
542 following definition:-

543           “Commissioner”, the commissioner of health insurance appointed pursuant to section 7A  
544 of chapter 26, or their designee.

545           SECTION 135. Section 12 of said chapter 176F, as so appearing, is hereby amended by  
546 striking out, in line 7, the words “division of insurance” and inserting in place thereof the  
547 following words:- division of health insurance.

SECTION 136. Section 1 of chapter 176G of the General Laws, as so appearing, is hereby amended by striking out the definition of “Commissioner” and inserting in place thereof the following definition:-

“Commissioner”, the commissioner of health insurance appointed pursuant to section 7A of chapter 26, or their designee.

SECTION 137. Section 4M of said chapter 176G, as so appearing, is hereby amended by striking out, in line 134, the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 138. Section 4V of said chapter 176G, as so appearing, is hereby amended by striking out, in lines 80 and 81 and line 96, the words “commissioner of insurance” and inserting in place thereof, in each instance, the following words:- commissioner of health insurance.

SECTION 139. Section 4EE of said chapter 176G, most recently amended by section 28 of chapter 285 of the acts of 2024, is hereby amended by striking out, each time they appear, the words “division of insurance” and inserting in place thereof, in each instance, the following words:- division of health insurance.

SECTION 140. Section 4MM of said chapter 176G, as so appearing, is hereby amended by striking out, in line 40, the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 141. Section 5A of said chapter 176G, as so appearing, is hereby amended by striking out, in lines 18 and 19, the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

569           SECTION 142. Section 8 of said chapter 176G, as so appearing, is hereby amended by  
570 striking out, in line 7, the words “division of insurance” and inserting in place thereof the  
571 following words:- division of health insurance.

572           SECTION 143. Section 17 of said chapter 176G, as so appearing, is hereby amended by  
573 striking out, in line 8, the words “commissioner of insurance” and inserting in place thereof the  
574 following words:- commissioner of health insurance.

575           SECTION 144. Section 32 of said chapter 176G, as so appearing, is hereby amended by  
576 striking out, in line 10, the words “division of insurance” and inserting in place thereof the  
577 following words:- division of health insurance.

578           SECTION 145. Section 1 of chapter 176I of the General Laws, as so appearing, is hereby  
579 amended by striking out the definition of “Commissioner” and inserting in place thereof the  
580 following definition:-

581           “Commissioner”, the commissioner of health insurance appointed pursuant to section 7A  
582 of chapter 26, or their designee.

583           SECTION 146. Section 8 of said chapter 176I, as so appearing, is hereby amended by  
584 striking out, in line 16, the words “commissioner of insurance” and inserting in place thereof the  
585 following words:- commissioner of health insurance.

586           SECTION 147. Section 1 of chapter 176J of the General Laws, as so appearing, is hereby  
587 amended by striking out the definition of “Commissioner” and inserting in place thereof the  
588 following definition:-

“Commissioner”, the commissioner of health insurance appointed pursuant to section 7A of chapter 26, or their designee.

SECTION 148. Section 4 of said section 176J, as so appearing, is hereby amended by striking out, in lines 75 and 80, the words “commissioner of insurance” and inserting in place thereof, in each instance, the following words:- commissioner of health insurance.

SECTION 149. Section 6 of said section 176J, most recently amended by section 75 of chapter 343 of the acts of 2024, is hereby amended by striking out, each time they appear, the words “division of insurance” and inserting in place thereof, in each instance, the following words:- division of health insurance.

SECTION 150. Section 10 of said section 176J, as so appearing, is hereby amended by striking out, in lines 1 and 11, the words “division of insurance” and inserting in place thereof, in each instance, the following words:- division of health insurance.

SECTION 151. Section 11 of said section 176J, as so appearing, is hereby amended by striking out, in lines 16 and 69 and 70, the words “commissioner of insurance” and inserting in place thereof, in each instance, the following words:- commissioner of health insurance.

SECTION 152. Said section 11 of said section 176J, as so appearing, is hereby further amended by striking out, in lines 35, 93, 95 and 107, the words “division of insurance” and inserting in place thereof, in each instance, the following words:- division of health insurance.

SECTION 153. Said section 11A of said chapter 176J, as so appearing, is hereby further amended by striking out, in lines 31 and 32, the words “division of health care finance and

609 policy” and inserting in place thereof the following words:- center for health information and  
610 analysis.

611 SECTION 154. Section 17 of said chapter 176J, as so appearing, is hereby amended by  
612 striking out, in line 10, the words “division of insurance” and inserting in place thereof the  
613 following words:- division of health insurance.

614 SECTION 155. Section 1 of chapter 176K of the General Laws, as so appearing, is  
615 hereby amended by striking out the definition of “Commissioner” and inserting in place thereof  
616 the following definition:-

617 “Commissioner”, the commissioner of health insurance appointed pursuant to section 7A  
618 of chapter 26, or their designee.

619 SECTION 156. Section 1 of chapter 176M of the General Laws, as so appearing, is  
620 hereby amended by striking out, in lines 21 and 22, the words “commissioner of insurance” and  
621 inserting in place thereof the following words:- commissioner of health insurance.

622 SECTION 157. Said section 1 of said chapter 176M, as so appearing, is hereby further  
623 amended by striking out the definition of “Commissioner” and inserting in place thereof the  
624 following definition:-

625 “Commissioner”, the commissioner of health insurance appointed pursuant to section 7A  
626 of chapter 26, or their designee.

627 SECTION 158. Section 2 of said chapter 176M, as so appearing, is hereby amended by  
628 striking out, in line 156, the words “commissioner of insurance” and inserting in place thereof  
629 the following words:- commissioner of health insurance.



630           SECTION 159. Section 3 said chapter 176M, as so appearing, is hereby amended by  
631 striking out, in line 107, the words “commissioner of insurance” and inserting in place thereof  
632 the following words:- commissioner of health insurance.

633           SECTION 160. Section 1 of chapter 176N of the General Laws, as so appearing, is  
634 hereby amended by striking out the definition of “Commissioner” and inserting in place thereof  
635 the following definition:-

636           “Commissioner”, the commissioner of health insurance appointed pursuant to section 7A  
637 of chapter 26, or their designee.

638           SECTION 161. Section 1 of chapter 176O of the General Laws, as so appearing, is  
639 hereby amended by striking out the definition of “Commissioner” and inserting in place thereof  
640 the following definition:-

641           “Commissioner”, the commissioner of health insurance appointed pursuant to section 7A  
642 of chapter 26, or their designee.

643           SECTION 162. Said section 1 of said chapter 176O, as so appearing, is hereby further  
644 amended by striking out the definition of “Division” and inserting in place thereof the following  
645 definition:-

646           “Division”, the division of health insurance.

647           SECTION 163. Section 2 of said chapter 176O, as so appearing, is hereby amended by  
648 striking out, in lines 79, 83 and 90, the words “commissioner of insurance” and inserting in place  
649 thereof, in each instance, the following words:- commissioner of health insurance.

650           SECTION 164. Section 5B of said chapter 176O, as so appearing, is hereby amended by  
651 striking out, in lines 3 and 4, the words “division of insurance” and inserting in place thereof the  
652 following words:- division of health insurance.

653           SECTION 165. Section 12B said chapter 176O, as so appearing, is hereby amended by  
654 striking out, in line 3, the words “commissioner of insurance” and inserting in place thereof the  
655 following words:- commissioner of health insurance.

656           SECTION 166. Section 14 said chapter 176O is hereby amended by striking out, in lines  
657 14 and 15, as so appearing, the words “commissioner of insurance” and inserting in place thereof  
658 the following words:- commissioner of health insurance.

659           SECTION 167. Said section 14 said chapter 176O is hereby further amended by striking  
660 out, in lines 93 and 94 and 108 and 109, as so appearing, the words “division of insurance”, each  
661 time they appear, and inserting in place thereof, in each instance, the following words:- division  
662 of health insurance.

663           SECTION 168. Section 1 of chapter 176Q of the General Laws, as so appearing, is  
664 hereby amended by striking out the definition of “Commissioner” and inserting in place thereof  
665 the following definition:-

666           “Commissioner”, the commissioner of health insurance appointed pursuant to section 7A  
667 of chapter 26, or their designee.

668           SECTION 169. Section 2 of said chapter 176Q, as so appearing, is hereby amended by  
669 striking out, in lines 18 and 19, the words “commissioner of insurance” and inserting in place  
670 thereof the following words:- commissioner of health insurance.

671           SECTION 170. Section 3 of said chapter 176Q, as so appearing, is hereby amended by  
672 striking out, in line 86, the words “division of insurance” and inserting in place thereof the  
673 following words:- division of health insurance.

674           SECTION 171. Section 1 of chapter 176R of the General Laws, as so appearing, is  
675 hereby amended by striking out the definition of “Commissioner” and inserting in place thereof  
676 the following definition:-

677           “Commissioner”, the commissioner of health insurance appointed pursuant to section 7A  
678 of chapter 26, or their designee.

679           SECTION 172. Section 1 of chapter 176S of the General Laws, as so appearing, is hereby  
680 amended by striking out the definition of “Commissioner” and inserting in place thereof the  
681 following definition:-

682           “Commissioner”, the commissioner of health insurance appointed pursuant to section 7A  
683 of chapter 26, or their designee.

684           SECTION 173. Section 1 of chapter 176T of the General Laws, as so appearing, is  
685 hereby amended by striking out the definition of “Commissioner” and inserting in place thereof  
686 the following definition:-

687           “Commissioner”, the commissioner of health insurance appointed pursuant to section 7A  
688 of chapter 26, or their designee.

689           SECTION 174. Section 1 of chapter 176U of the General Laws, as so appearing, is  
690 hereby amended by striking out the definition of “Commissioner” and inserting in place thereof  
691 the following definition:-

“Commissioner”, the commissioner of health insurance appointed pursuant to section 7A of chapter 26, or their designee.

SECTION 175. Section 6 of said chapter 176U, as so appearing, is hereby amended by striking out, in lines 42 and 43, the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 176. Section 7 of said chapter 176U, as so appearing, is hereby amended by striking out, in line 26, the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 177. Section 1 of chapter 176V of the General Laws, as so appearing, is hereby amended by striking out the definition of “Commissioner” and inserting in place thereof the following definition:-

“Commissioner”, (i) the commissioner of insurance appointed pursuant to section 6 of chapter 26, or their designee, or, as appropriate, (ii) the commissioner of health insurance appointed pursuant to section 7A of said chapter 26, or their designee, to the extent that this chapter applies to companies that are regulated by the division of health insurance pursuant to section 1 of said chapter 26.

SECTION 178. Section 1 of chapter 176W of the General Laws, as so appearing, is hereby amended by striking out the definition of “Commissioner” and inserting in place thereof the following definition:-

“Commissioner”, (i) the commissioner of insurance appointed pursuant to section 6 of chapter 26, or their designee, or, as appropriate, (ii) the commissioner of health insurance

appointed pursuant to section 7A of said chapter 26, or their designee, to the extent that this chapter applies to companies that are regulated by the division of health insurance pursuant to section 1 of said chapter 26.

SECTION 179. Said section 1 of said chapter 176W, as so appearing, is hereby further amended by striking out the definition of “Division” and inserting in place thereof the following definition:-

“Division”, the division of insurance or the division of health insurance, as appropriate.

SECTION 180. Section 1 of chapter 176X of the General Laws, as so appearing, is hereby amended by striking out the definition of “Commissioner” and inserting in place thereof the following definition:-

“Commissioner”, the commissioner of health insurance appointed pursuant to section 7A of chapter 26, or their designee.

SECTION 181. Section 2 of said chapter 176X, as so appearing, is hereby amended by striking out, in lines 3, 75 and 76, and 90, the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 182. Section 1 of chapter 176Y, inserted by section 37 of chapter 342 of the acts of 2024, is hereby amended by striking out the definition of “Commissioner” and inserting in place thereof the following definition:-

“Commissioner”, the commissioner of health insurance appointed pursuant to section 7A of chapter 26, or their designee.

SECTION 183. Said section 1 of said chapter 176Y, inserted by section 37 of chapter 342 of the acts of 2024, is hereby further amended by striking out the definition of “Division” and inserting in place thereof the following definition:-

“Division”, the division of health insurance.

SECTION 184. Subsection (e) of section 3 of chapter 176Y, inserted by section 37 of chapter 342 of the acts of 2024, is hereby amended by striking out the words” division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 185. Section 24 of chapter 197 of the acts of 2024 is hereby amended by striking out subsection (d) and inserting in place thereof the following subsection:-

(d) The division of health insurance and the division of medical assistance shall issue sub-regulatory guidance to effectuate the purposes of this section.

SECTION 186. Subsection (b) of section 34 of said chapter 197 of the acts of 2024 is hereby amended by striking out, each time they appear, the words “division of insurance” and inserting in place thereof, in each instance, the following words:- division of health insurance.

SECTION 187. Section 39 of chapter 285 of the acts of 2024 is hereby amended by striking out the words “division of insurance” and inserting in place thereof the following words:- division of health insurance.

SECTION 188. Section 40 of chapter 342 of the acts of 2024 is hereby amended by striking out the words “commissioner of insurance” and inserting in place thereof the following words:- commissioner of health insurance.

753           SECTION 189. Section 80 of chapter 343 of the acts of 2024 is hereby amended by  
754 striking out the words “commissioner of insurance” and inserting in place thereof the following  
755 words:- commissioner of health insurance.

756           SECTION 190. Said section 80 of said chapter 343 of the acts of 2024 is hereby further  
757 amended by striking out, each time they appear, the words “division of insurance” and inserting  
758 in place thereof, in each instance, the following words:- division of health insurance.